

Court No. - 3

Case :- WRIT - C No. - 3303 of 2022

Petitioner :- Sunita Shukla

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- M.S. Chauhan

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State-respondents.

Grievance of the petitioner is that without considering the objection, the respondent no.2 has created demand against the petitioner and issued notice for recovery of the electricity dues.

Learned counsel for the respondents submits that petitioner may move a fresh objection under Section 6.8 of Electricity Supply Code, 2005, which shall be considered by the respondent no.2 and appropriate order shall be passed within a time bound period after affording reasonable opportunity of hearing to the petitioner.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, the writ petition is ***disposed of***, given liberty to the petitioner to submit an objection afresh before the respondent no.2 within three weeks from today along with a certified copy of this order. In the event, such an objection is filed within the stipulated period, the same shall be decided by the respondent no.2 in accordance with law by reasoned and speaking order within next four weeks after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 12.4.2022

T.S.